BUY - SELL AGREEMENT (Residential)
(Including Earnest Money Receipt)

keThis Agreement stipulates the terms of sale of this property. Read carefully before signing. This is a legally binding contract. If not understood, seek competent advice.

Date: 03/03/2026

Mark W Huston and Janelle M Huston as ☑ joint tenants with rights of a survivorship, ☐ tenants in common, ☐ individually, ☐ other ____________ (hereafter the "Buyer") agrees to purchase, and the Seller agrees to sell the following described real property (hereafter the "Property") commonly known as 2760 Carla Jo Ln, Missoula, MT 59803

in the City of Missoula, County of Missoula, Montana, legally described as: Lot 105 of Invermere, Phase 2A, a platted subdivision in the CITY OF Missoula, Missoula County, Montana, according to the official recorded plat thereof.

TOGETHER with all interest of Seller in vacated streets and alleys adjacent thereto, all easements and other appurtenances thereto, and all improvements thereon. All existing permanently installed fixtures and fittings that are attached to the Property are included in the purchase price and transfer to the Buyer, free of liens and without warranty of condition. Certain fixtures and fittings are included in the purchase price and transfer to the Buyer regardless of whether they are in fact permanently installed and attached to the Property. These fixtures and fittings are electrical, plumbing and heating fixtures, solar panels and related components, Seller owned water softeners/conditioners and propane tanks, wood, pellet, or gas stoves, built-in appliances, screens, storm doors, storm windows, curtain rods and hardware, window treatments, attached floor coverings, television wall mounts, satellite dish, hot tub, air cooler or conditioner, garage door openers and controls, fireplace inserts, mailbox, storage sheds, chicken coops, trees and shrubs and perennials attached to the Property, attached buildings or structures, unless otherwise excluded below:

No exceptions

PURCHASE PRICE AND TERMS:

$ 625000 Purchase Price: six hundred twenty-five thousand (U.S. Dollars)

$ 10000 Earnest Money (credited to Buyer at closing)

$ 615000 Balance Due (not including closing costs, prepaids and prorations) payable as follows (check one):

☑ All cash at closing (no financing contingency);

Certification of cash funds provided ☑ with offer **OR** ☐ delivered by Buyer within ______ days of the date all parties have signed this Agreement. If Buyer fails to provide the certification of cash funds as required herein, Buyer will be in breach of this Agreement and Seller can exercise Seller's remedies under this Agreement.

☐ Additional cash down payment at closing in the minimum amount of:

☐ $____________ **OR** ☐ ________% of the Purchase Price

Balance to be financed as indicated below:

☐ Conventional ☐ FHA ☐ VA ☐ MBOH ☐ USDA-RD ☐ Seller Financing ☐ Assumption

☐ Other: ____________

A ☐ pre-qualification letter **OR** a ☐ pre-approval letter from financial institution provided ☐ with offer **OR** ☐ delivered by Buyer within ______ days of the date all parties have signed this Agreement. If Buyer fails to provide the pre-qualification or pre-approval letter (as applicable) as required herein, Buyer will be in breach of this Agreement and Seller can exercise Seller's remedies under this Agreement.

CLOSING DATE: The date of closing shall be (date) 03/13/2026 (the "Closing Date"). The parties may, by mutual agreement, close the transaction anticipated by this Agreement at any time prior to the date specified. The Buyer and Seller will deposit with the closing agent all instruments and funds necessary to complete the purchase in accordance with this Agreement. If third party financing is required by the terms of this Agreement (including assumptions, contracts for deed, and lender financing), the Closing Date may be extended without amendment by not more than ________ days to accommodate delays attributable solely to such third party financing including, but not limited to, delays attributable to governmental regulations. If the Closing Date, or any extension of the Closing Date, falls on a Saturday, Sunday or Montana or federal holiday, it shall automatically be extended to the first day immediately following that is not a Saturday, Sunday or Montana or federal holiday.

POSSESSION: Seller shall deliver to Buyer possession of the Property and allow occupancy:
- ☐ when the closing agent is in receipt of all required, signed documents and all funds necessary for the purchase: OR
- ☑ upon recording of the deed or notice of purchaser's interest, OR
- ☐ ____

Property shall be vacant unless otherwise agreed in writing. Seller shall provide keys and/or means to operate locks, mailboxes, security systems, alarms, garage door opener(s), and Property Owner's Association facilities, if applicable.

EARNEST MONEY: *(check one)*

☐ Broker/Salesperson acknowledges actual receipt of earnest money in the amount as set forth herein as evidenced by check, cash or wire transfer.

Broker/Salesperson: ______________________________ ______________________________

(name printed) *(signature acknowledging receipt of earnest money)*

OR

☑ Buyer agrees to provide earnest money in the amount as set forth herein within 2 days, by 5:00 p.m. (Mountain Time), of the date all parties have signed this Agreement. If the date the earnest money is due falls on a Saturday, Sunday or Montana or federal holiday, it shall be paid on the first day immediately following the due date that is not a Saturday, Sunday or Montana or federal holiday.

Earnest money may be made by check, cash or wire transfer and shall be held in trust by Insured Titles ________________________. If Buyer fails to provide earnest money as set forth herein, Buyer will be in default and Seller may declare this Agreement terminated and any earnest money already paid forfeited. The parties agree that accrued interest, if any, shall be payable to the holder of the funds and that sums so paid are consideration for services rendered.

PERSONAL PROPERTY: The following items of personal property, free of liens and without warranty of condition, are included and shall transfer to the Buyer at Closing: Dishwasher, Disposal, Dryer, Microwave, Range, Refrigerator, Washer

Buyer acknowledges that only the personal property set forth above is to transfer to the Buyer at Closing regardless of any other advertisements or information to the contrary.

LEASED/RENTED PERSONAL PROPERTY: The following personal property is leased/rented: ☐ water softener ☐ water conditioner ☐ propane tank ☐ satellite dish, ☐ satellite control ☐ alarm system ☐ other ________________

Buyer is responsible for making ____ arrangements concerning Buyer's right to lease/rent said items and Seller makes no representations or warranties concerning the transferability of said items or the assignment of any agreements relating to the lease/rental of said items.

FINANCING CONDITIONS AND OBLIGATIONS:

BUYER'S REPRESENTATION OF FUNDS: Buyer represents that they have sufficient funds for the down payment and closing costs to close this sale in accordance with this Agreement and are not relying upon any contingent source of such funds unless otherwise expressly set forth herein.

LOAN APPLICATION: If Buyer fails to (i) make written application for financing with a lender which shall include providing a full executed copy of this Agreement to the lender, provide notice of their intent to a lender and pay to the lender any required fees, (ii) apply for assumption of an existing loan or contract, or (iii) initiate any action required for completion of seller financing by 5:00 P.M. (Mountain Time) (date) na Buyer will be in breach of this Agreement and Seller can exercise Seller's remedies under this Agreement. This clause shall not be construed to restrict Buyer's right to review a loan estimate granted by governmental regulations.

V.A. BUYERS: It is expressly agreed that, notwithstanding any other provisions of this contract, the Buyer shall not incur any penalty by forfeiture of earnest money or otherwise be obligated to complete the purchase of the Property if the contract purchase price or cost exceeds the reasonable value of the Property established by the Veteran's Administration. The Buyer shall, however, have the privilege and option of proceeding with the consummation of this Agreement without regard to the amount of the reasonable value established by the Veteran's Administration.

F.H.A. BUYERS: In the event funds for the transaction anticipated by this Agreement are to be derived from an F.H.A. insured loan, it is expressly agreed that, notwithstanding any other provisions of this Agreement, the Buyer shall not be obligated to complete the purchase of the Property described herein or to incur any penalty by forfeiture of earnest money deposits or otherwise, unless the Buyer has received a written statement issued by the Federal Housing Commissioner, Veteran's Administration, or a Direct Endorsement lender setting forth the appraised value of the Property for mortgage insurance purposes of not less than the amount set forth in the APPRAISAL PROVISION section, which amount is incorporated herein by reference. The Buyer shall have the privilege and option of proceeding with the consummation of this Agreement without regard to the amount of the appraised valuation made by the Federal Housing Commissioner. The appraised valuation is arrived at to determine the maximum mortgage the Department of Housing and Urban Development (HUD) will insure. HUD does not warrant the value nor the condition of the Property. The Buyer should satisfy himself/herself that the price and condition of the Property are acceptable.

DETECTION DEVICES: The Property is equipped with the following detection devices:

- ☐ Smoke detector(s)
- ☐ Carbon monoxide detector(s)
- ☐ Other fire detection device(s): ______________________________

____

PROPERTY INSPECTIONS: The Buyer is aware that any Brokerage Firm(s) and Brokers/Salespersons involved in the transaction anticipated by this Agreement have not conducted an expert inspection or analysis of the Property or its condition and make no representations to the Buyer as to its condition, do not assure that the house and/or buildings will be satisfactory to the Buyer in all respects, that all equipment will operate properly or that the Property and/or improvements comply with current building and zoning codes and ARE NOT building inspectors, building contractors, structural engineers, electricians, plumbers, sanitarians, septic or cesspool experts, well drillers or well experts, land surveyors, civil engineers, flood plain or water drainage experts, roofing contractors or roofing experts, accountants, attorneys, or title examiners, or experts in identifying hazardous waste and/or toxic materials.

CONTINGENCIES: The contingencies set forth in this Agreement or on attached addenda shall be deemed to have been released, waived, or satisfied, and the Agreement shall continue to closing, unless, by 5:00 p.m. (Mountain Time) on the date specified for each contingency, the party requesting that contingency has notified the other party or the other party's Broker/Salesperson in writing that the contingency is not released, waived, or satisfied. If a party has notified the other party on or before the release date that a contingency is not released, waived, or satisfied, this Agreement is terminated, and the earnest money will be returned to the Buyer, unless the parties negotiate other terms or provisions.

INSPECTION CONTINGENCY:

☑ This Agreement is contingent upon Buyer's acceptance of any Property conditions that Buyer deems appropriate, including but not limited to any inspections or advice listed below. Buyer agrees to acquire, at Buyer's own expense, independent inspections or advice from qualified inspectors and advisors of the Buyer's choice. Buyer agrees that any investigations or inspections undertaken by Buyer or on his/her behalf shall not damage or destroy the Property, without the prior written consent of Seller. Seller agrees to provide Buyer and Buyer’s agents, inspectors and advisors reasonable access to the Property to conduct any inspections desired by Buyer. Buyer agrees to indemnify, defend and hold harmless Seller from any and all claims or damage, including attorney’s fees, caused by or incurred during any inspections of the Property by or on behalf of the Buyer and that arise out of or are related to (i) any loss or damage to the Property or the contents of the Property caused by any inspection or (ii) any injury to Buyer or Buyer’s inspectors or advisors.

Home/Property Inspection
Owner's Property Disclosure Statement
Roof Inspection
Structural/Foundation Inspection
Electrical Inspection
Plumbing Inspection
Heating, ventilation, cooling system – Inspection
Stove/Fireplace Inspection
Pest/Rodent Inspection
Well Inspection for Condition of Well and Quantity of Water
Accounting Advice
Survey or Corner Pins located
Access to Property
Verification of # of code compliant bedrooms
Verification of square footage of improvements
Water Rights
Zoning Determination
Post-Closing Rental Obligations
Inspection/Testing for Methamphetamine

Review and Approval of Protective Covenants
Easements
Flood Plain Determination
Water Sample Test
Septic or Cesspool Inspection
Mineral Rights Search
Radon
Asbestos
Wildfire Risk
Legal Advice
Toxic Waste/Hazardous Material
Underground Storage Tanks
Sanitary Approval/Septic permit
Mold
Verification of lot size
Airport Affected Area
Road Maintenance
Internet Availability/Speed

Unless Buyer delivers written notice(s) of Buyer's disapproval of the Property conditions on or before (Notice Date) 03/10/2026 at 5:00 p.m. (Mountain Time), this inspection contingency shall be of no further force or effect. **If Buyer disapproves** of the Property condition, Buyer shall deliver written notice to the Seller or the Seller's Broker/Salesperson on or before the date specified above, together with a copy of ONLY that portion of the inspection or report upon which the disapproval is based. Buyer shall also state whether Buyer elects to immediately terminate the Agreement or negotiate a resolution of the conditions noted. **If Buyer elects to negotiate** a resolution of the conditions noted, the notice must contain all of Buyer's objections and requested remedies.

On or before the Notice Date set forth above, Buyer may deliver a written notice to the Seller or the Seller's Broker/Salesperson electing to terminate the Agreement and withdrawing any prior notice or notices requesting a resolution of the condition(s) noted, unless said prior notice(s) have been approved and agreed to in writing by the Seller.

If Buyer has provided a notice electing to negotiate and the parties enter into a written agreement in satisfaction of the condition(s) noted, this contingency shall be of no further force or effect. If the parties cannot come to written agreement in satisfaction of the condition(s) noted or if the Buyer does not withdraw, in writing, his/her disapproval of the condition(s) noted and elect to continue to closing without regard to any and all previously provided inspection notices, on or before (Resolution Date) 03/12/2026 at 5:00 p.m. (Mountain Time), the earnest money shall be returned to the Buyer, and the Agreement then terminated.

FINANCING CONTINGENCY:

☐ This Agreement is contingent upon Buyer obtaining the financing specified in the section of this Agreement entitled "PURCHASE PRICE AND TERMS." If financing cannot be obtained by the Closing Date this Agreement is terminated and the earnest money will be refunded to the Buyer.

APPRAISAL CONTINGENCY:

☐ Property must appraise for at least ☐the Purchase Price **OR** at least ☐$ ______________________. If the Property does not appraise for at least the specified amount, this Agreement is terminated and earnest money refunded to the Buyer unless the Buyer elects to proceed with closing this Agreement without regard to appraised value. Written notice of Buyer's election to proceed shall be given to Seller or Seller's Broker/Salesperson within ________ days of Buyer or Buyer's Broker/Salesperson receiving notice of appraised value; **OR**

☐ This Agreement is contingent upon the Property appraising for at least ☐the Purchase Price **OR** at least ☐$ ______________________. Release Date: ______________________ at 5:00 p.m. (Mountain Time).

TITLE CONTINGENCY: This Agreement is contingent upon Buyer's receipt and approval (to Buyer's satisfaction) of the preliminary title commitment (the “Commitment”) issued for the Property. However, Buyer may not object to the standard pre-printed exceptions (general exceptions not unique to the Property). Release Date: 5 business days from the earlier of Buyer's or Buyer Broker’s/Salesperson’s receipt of the Commitment.

Buyer may approve the Commitment subject to the removal of specified exceptions. However, Buyer may not object to the standard pre-printed exceptions (general exceptions not unique to the Property). If Buyer provides Seller written objections to the Commitment prior to the release date above, Seller shall have ten (10) days from receipt of those objections to satisfy said objections or propose to Buyer a plan by which the objections would be satisfied within a time frame satisfactory to Buyer. If within said ten (10) day period Seller has not either satisfied Buyer’s objection to the Commitment or proposed to Buyer a plan by which the objections would be satisfied, Buyer shall have three (3) days after expiration of said ten (10) day period to notify Seller whether Buyer desires to (i) terminate this Agreement in which case the earnest money shall be returned to the Buyer or (ii) waive said objections in which case this Agreement shall remain in full force and effect. The two remedies stated above shall be Buyer’s sole remedies if Seller and Buyer are unable to resolve Buyer’s objections to the Commitment.

Buyer shall have the right to examine any updated or revised Commitment at any time after the expiration of the Release Date set forth above and to object to any new title exceptions created or suffered since the effective date of the original Commitment. If Buyer notifies Seller of any such additional objections prior to the Closing Date, the parties shall have the same rights set forth above and the Closing Date shall be extended by the number of days equal to the number of days set forth after the Release Date, above, plus thirteen (13).

INSURANCE CONTINGENCY: This Agreement is contingent upon Buyer's ability to acquire, at a rate acceptable to the Buyer, hazard insurance on the Property. Release Date: 03/11/2026 at 5:00 p.m. (Mountain Time).

LEAD BASED PAINT CONTINGENCY: For housing built prior to 1978, if Seller is required by applicable law to provide a Lead Based Paint Disclosure and pamphlet entitled “Protect Your Family from Lead in Your Home” (the LBP Documents), and if said LBP Documents have been provided to Buyer **after** the full execution of this Agreement by all parties, Buyer shall have the unconditional right to cancel this Agreement (without risk of loss or other adverse effects) within three (3) days after electronic or hand delivery of the LBP Documents, or five (5) days after deposit of the LBP Documents in the mail, by giving written notice of cancellation to Seller or Seller’s Broker/Salesperson.

OWNER’S PROPERTY DISCLOSURE CONTINGENCY: Pursuant to Montana law, in the transfer of residential real estate in Montana a seller is required to provide to a buyer a written disclosure statement disclosing any adverse material facts that concern the residential real property and of which the seller has actual knowledge (the “Disclosure Statement”). If said Disclosure Statement is not delivered by Seller to Buyer prior to or contemporaneously with the execution of this Agreement Buyer shall have the right to rescind this Agreement within three (3) days after delivery of the Disclosure Statement by Seller to Buyer by Buyer giving written notice of rescission to Seller or Seller’s Broker/Salesperson. Buyer may waive this right to rescind as set forth in this Agreement.

This Agreement is contingent upon ____
____
____
________________________________ Release Date: __________________ at 5:00 p.m. (Mountain Time).

This Agreement is contingent upon ______________________________

______________________________ Release Date: ______________ at 5:00 p.m. (Mountain Time).

ADDITIONAL PROVISIONS:

For the most part, the home will be sold "as is" The purpose of the home inspection is to identify any major issues that may need to be addressed.

5959 Hayes Creek is scheduled to close on March 6, 2026 at Insured Titles, and all required cash will be sourced from this property. I?ve attached the settlement statement for your verification of funds.

DELIVERY OF OWNER'S PROPERTY DISCLOSURE: Buyer acknowledges and understands that the actions of Seller's Broker/Salesperson in including the Disclosure Statement in material available for download in the multiple listing service(s) in which the Property was advertised for sale shall constitute delivery of said Disclosure Statement to Buyer.

Concerning delivery of the Disclosure Statement to Buyer:

- ☑ A copy of the Disclosure Statement **has** been delivered to Buyer prior to or contemporaneously with providing the offer set forth in this Agreement.
- ☐ A copy of the Disclosure Statement **has not** been delivered to Buyer prior to or contemporaneously with providing the offer set forth in this Agreement.
  - ☐ Buyer hereby waives the right to rescind this Agreement based on the fact that a copy of the Disclosure Statement was not delivered to Buyer prior to or contemporaneously with providing the offer set forth in this Agreement.

CONVEYANCE: The Seller shall convey the Property by Warranty deed, free of all liens and encumbrances except those described in the preliminary title commitment, as approved by the Buyer.

MANUFACTURED HOME(S): If a MANUFACTURED HOME is included in the sale of this Property, title will be conveyed at time of closing. Year __________ Make/Model ______________________________
Serial Number ______________________________ Title Number ______________________________

WATER: All water, including surface water or ground water, any legal entitlement to water, including statements of claim, certificates of water rights, permits to appropriate water, exempt existing rights, decreed basins or any ditches, ditch rights, or ditch easements appurtenant to and/or used in connection with the Property are included with the Property, except ______________________________

Filing or transfer fees will be paid by ☐ Seller, ☐ Buyer, ☐ split equally between Buyer and Seller.
Documents for transfer will be prepared by ______________________________

EXEMPT WELL PERMITTING DISCLAIMER AND BUYER ACKNOWLEDGMENT: Buyer acknowledges that groundwater use in Montana, including wells claimed to be exempt from permitting, is subject to changing laws, regulations, and agency and court decisions. An exempt well filing does not guarantee the legality, priority, or continued availability of groundwater, and groundwater use may be limited or prohibited due to basin closures, regulatory action, mitigation requirements, or other governmental determinations by the Montana Department of Natural Resources and Conservation ("DNRC") or a Montana court or other authorities.

If the Property is served by a well, neither Seller nor any Brokerage Firm(s) or Brokers/Salespersons involved in the transaction anticipated by this Agreement make any representation or warranty regarding the existence, validity, priority, exempt status, or adequacy of any well or groundwater use serving the Property. Buyer acknowledges that water availability is a material consideration in Buyer's decision to purchase the Property, that Buyer is not relying on any statement by Seller or said Brokerage Firms or Brokers/Salesperson regarding groundwater or exempt well eligibility, and that Buyer has had the opportunity to conduct Buyer's own independent investigation regarding water rights and groundwater use.

If the Property is served by a well, Buyer assumes all risk related to groundwater development and use for the Property, and neither Seller nor any Brokerage Firm(s) or Brokers/Salespersons involved in the transaction anticipated by this Agreement shall have any liability for any loss, cost, or inability to use groundwater resulting from exempt well permitting or related regulatory requirements.

WATER RIGHT OWNERSHIP UPDATE DISCLOSURE: By Montana law, failure of the parties at closing or transfer of real property to pay the required fee to the Montana Department of Natural Resources and Conservation for updating water right ownership may result in the transferee of the property being subject to a penalty. Additionally, in the case of water rights being exempted, severed, or divided, the failure of the parties to comply with section 85-2-424, MCA, could result in a penalty against the transferee and rejection of the deed for recording.

NATURAL WATER BODIES AND LAND PRESERVATION DISCLOSURE: Buyers of property in the State of Montana should be aware that some properties contain or are adjacent to streams, rivers, wetlands, floodplains and other water bodies. It is the general policy of the State of Montana, under the Montana Natural Streambed and Land Preservation Act of 1975, that natural water bodies and the lands immediately adjacent to them are to be protected and preserved to be available in their natural or existing state, and to prohibit unauthorized projects related thereto. Property owners should consult their local conservation district, a land use professional, or other qualified advisor, regarding any applicable local, state or federal regulations, including permitting or other approvals, before working in or around any streams, rivers, wetlands, floodplains or other water bodies, including vegetation removal.

FLUCTUATING WATER LEVELS: Buyers of waterfront property or property which has waterfront access should be aware that fluctuating water levels may occasionally or permanently affect the ability to recreate, irrigate, or engage in other uses of said water. Water provided to the Property by a well, spring, or other surface or subsurface water source, may also fluctuate as to the quantity or quality of the water which may occasionally or permanently affect the ability to irrigate or engage in other uses of said water.

FLOOD PLAIN DISCLOSURE: Property flooding can occur any time of year from both surface water as well as groundwater (water rising up through the ground). Buyer's hazard insurance policy usually will <u>NOT</u> cover property damage due to this type of flooding. If Property is determined to lie within a FEMA-designated 1% Flood Hazard Area and the Buyer is obtaining a loan, Buyer's lender will likely require the purchase of flood insurance in connection with Buyer's purchase of the Property. The Property could be impacted, learn more at FEMA.gov.

MINERAL RIGHTS: "Mineral rights" as defined in this Agreement (which may be different than the definition under Montana law) is a term used to describe the rights the owner of those rights has to use, mine, and/or produce any or all of the minerals and hydrocarbons including oil, gas, coal, sand, gravel, etc., lying below the surface of property. These mineral rights may be separate from the rights a property owner has for the surface of a property. In some cases, these mineral rights have been transferred to a party other than the property owner and as a result the subsurface mineral rights have been severed from the property owner's surface rights. If the mineral rights have been severed from the surface rights, the owner of the mineral rights has the right to enter the land and occupy it in order to mine the minerals even though they don't own the property. The undersigned Buyer acknowledges and agrees that neither the Seller nor the brokerage firms, brokers and salespersons involved in the transaction anticipated by this Agreement warrant or make any representations concerning the mineral rights, if any, for this Property and that neither the Seller nor the brokerage firms, brokers and salespersons involved in the Buyer's purchase of the Property have conducted an inspection or analysis of the mineral rights to and for the Property.

CLOSING FEE: The fee charged by the individual or company closing the transaction will be paid by ☐ Seller ☑ Buyer ☐ Equally Shared.

TITLE INSURANCE: Seller, at Seller's expense and from a title insurance company chosen by Seller, shall furnish Buyer with an ALTA Standard Coverage Owner's Title Insurance Policy (as evidenced by a standard form American Land Title Association title insurance commitment) in an amount equal to the purchase price. Buyer may purchase additional owner's title insurance coverage in the form of "Extended Coverage," "Enhanced Coverage" for an additional cost to the Buyer. It is recommended that Buyer obtain details from a title company.

CONDITION OF TITLE: All mortgages, judgments and liens shall be paid or satisfied by the Seller at or prior to closing unless otherwise provided herein. Seller agrees that no additional encumbrances, restrictions, easements or other adverse title conditions will be placed against the title to the Property subsequent to the effective date of the preliminary title commitment approved by the Buyer.

SECTION 1031 LIKE-KIND EXCHANGE: If either Buyer or Seller intends for this transaction to be part of a Section 1031 like-kind exchange, then the other party shall cooperate in the completion of the like-kind exchange provided the cooperating party does not incur any additional liability or cost in doing so. Any party who intends for this transaction to be part of a Section 1031 like-kind exchange may assign their rights under this Agreement to a qualified intermediary or any entity expressly created for the purposes of completing a Section 1031 like-kind exchange, notwithstanding the prohibition against the Buyer's assignment of this Agreement set forth in the "Binding Effect and Non-Assignability" section below.

SPECIAL IMPROVEMENT DISTRICTS AND ASSOCIATION SPECIAL ASSESSMENTS: All Special Improvement Districts (including rural SIDs), and all special or non-recurring assessments of any non-governmental association, including those that have been noticed to Seller by City/County but not yet spread or currently assessed or that have been approved but not yet billed or assessed, will be assumed by Buyer at closing unless otherwise agreed.

MONTANA RESIDENTIAL PROPERTY TAX CHANGES ACKNOWLEDGMENT AND DISCLAIMER: Buyer acknowledges and understands that the State of Montana has enacted changes to the rules and calculation of residential property taxes that went into effect in 2026, including a new reduced tax rate structure for qualifying principal residences and long-term rentals and higher tax rates for residential properties that do not qualify for reduced classification (such as second homes or short-term rentals). Buyer further acknowledges that (i) the amount of property tax that Buyer will ultimately pay for the Property in 2026 and beyond may differ materially from prior tax years; (ii) whether the Property qualifies for any reduced tax classification depends on Buyer's use, occupancy, enrollment, and compliance with applicable Montana statutes, Montana Department of Revenue rules, and administrative processes; and (iii) neither Seller nor any Brokerage Firm(s) or Brokers/Salespersons involved in the transaction anticipated by this Agreement have made any representations, warranties, or guarantees regarding the Property's current or future property tax classification, tax rates, eligibility for reduced tax rates, property tax bills, or tax liability. Buyer agrees that Buyer has had the opportunity to seek independent advice from tax professionals or legal counsel regarding potential impacts of Montana property tax changes on Buyer's ownership and future tax obligations relating to the Property.

PRORATION OF TAXES AND ASSESSMENTS: Seller and Buyer agree to prorate taxes, Special Improvement District and association special assessments for the current tax year, as well as prepaid rents, water and sewer system charges, heating fuel and tank rental, irrigation assessments, Homeowner's Association dues and/or common maintenance fees, as of the date of closing unless otherwise agreed.

HEATING FUEL/PROPANE PRORATION: Seller and Buyer agree to prorate the heating fuel/propane at the current market price as provided by a heating fuel/propane company no more than 7 days prior to closing, OR at the price charged for the last refill per a receipt to be provided by the Seller prior to closing, whichever is LESS. If the heating fuel/propane tank is rented, proration will be based on the most current rental fee charged or owing at the time of closing.

CONDITION OF PROPERTY: Seller agrees that the Property shall be in the same condition, normal wear and tear excepted, from the date of the execution of this Agreement up to the time Buyer takes possession of the Property. Seller agrees to leave the Property free and clear of Seller's personal property and possessions, tenants, and occupants, except as otherwise agreed to in the Agreement. Seller also agrees to leave the Property in broom clean or better condition, free of trash and debris, with floors swept or vacuumed and surfaces generally wiped clean. Seller also agrees to allow Buyer a walk-through inspection of said Property prior to closing to confirm that all appurtenances and appliances included in the sale remain on the Property and that there has been no significant change in the condition of the Property, except for normal wear and tear and changes agreed upon by the parties.

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NOXIOUS WEEDS DISCLOSURE: Buyers of property in the State of Montana should be aware that some properties contain noxious weeds. The laws of the State of Montana require owners of property within this state to control, and to the extent possible, eradicate noxious weeds. For information concerning noxious weeds and your obligations as an owner of property, contact either your local county extension agent or Weed Control Board.

MEGAN'S LAW DISCLOSURE: Pursuant to the provisions of Title 46, Chapter 23, Part 5 of the Montana Code Annotated, certain individuals are required to register their address with the local law enforcement agencies as part of Montana's Sexual and Violent Offender Registration Act. In some communities, law enforcement offices will make the information concerning registered offenders available to the public. If you desire further information please contact the local County Sheriff's office, the Montana Department of Justice, in Helena, Montana, and/or the probation officers assigned to the area.

RADON DISCLOSURE STATEMENT: The following disclosure is given pursuant to the Montana Radon Control Act, Montana Code Annotated Section 75-3-606. RADON GAS: RADON IS A NATURALLY OCCURRING RADIOACTIVE GAS THAT, WHEN IT HAS ACCUMULATED IN A BUILDING IN SUFFICIENT QUANTITIES, MAY PRESENT HEALTH RISKS TO PERSONS WHO ARE EXPOSED TO IT OVER TIME. LEVELS OF RADON THAT EXCEED FEDERAL GUIDELINES HAVE BEEN FOUND IN BUILDINGS IN MONTANA. ADDITIONAL INFORMATION REGARDING RADON AND RADON TESTING MAY BE OBTAINED FROM YOUR COUNTY OR STATE PUBLIC HEALTH UNIT. If the Property has been tested for radon, the Seller will provide a copy of the test results concurrent with an executed copy of this Agreement. If the Property has received radon mitigation treatment, the Seller will provide the evidence of the mitigation treatment concurrent with an executed copy of this Agreement.

NEWLY CONSTRUCTED RESIDENCE: See "Newly Constructed Residence Addendum and Disclosure."

BUYER'S REMEDIES:

(A) If the Seller fails to accept the offer contained in this Agreement within the time period provided in the BUYER'S COMMITMENT section, all earnest money shall be returned to the Buyer.

(B) If the Seller accepts the offer contained in this Agreement, but refuses or neglects to consummate the transaction anticipated by this Agreement within the time period provided in this Agreement, the Buyer may:

(1) Demand immediate repayment of any earnest money paid by the Buyer, and upon the return of such money, the rights and duties of Buyer and Seller under this Agreement shall be terminated;

OR (2) Demand that Seller specifically perform Seller's obligation under this Agreement;

OR (3) Demand monetary damages from Seller for Seller's failure to perform the terms of this Agreement.

SELLER'S REMEDIES:

If the Seller accepts the offer contained in this Agreement and Buyer refuses or neglects to consummate the transaction anticipated by this Agreement within the time period provided in this Agreement, the Seller may:

(1) Declare the earnest money paid by Buyer be forfeited whereupon the rights and duties of the Buyer and Seller under this Agreement shall be terminated;

OR (2) Demand that Buyer specifically perform Buyer's duties and obligations under this Agreement;

OR (3) Demand that Buyer pay monetary damages for Buyer's failure to perform the terms of this Agreement.

BUYER'S AND SELLER'S CERTIFICATION: By entering into this Agreement, each person or persons executing this Agreement, as Buyer or Seller, represents that he/she is eighteen (18) years of age or older, of sound mind, and legally competent to own or transfer real property in the State of Montana; and, if acting on behalf of a corporation, partnership, or other non-human entity, that he/she is duly authorized to enter into this Agreement on behalf of such entity.

FOREIGN PERSON OR ENTITY: The Foreign Investor Real Property Tax Act of 1980 (“FIRPTA”) provides for the withholding of tax upon the sale of U.S. real property owned by a foreign entity or foreign person unless the amount realized (usually the sales price) does not exceed $300,000 and the Buyer intends to use the Property as a residence. If the Seller is a foreign entity or foreign person, Seller acknowledges and agrees that the Buyer or closing agent is required to deduct and withhold the applicable tax from the proceeds of sale at closing and submit the tax to the Internal Revenue Service unless the transfer of the Property satisfies an exception provided for in FIRPTA. At or prior to Closing, Seller agrees to perform any act and sign any document that is reasonably necessary to comply with FIRPTA including a Statement of Non-Foreign Status. Seller acknowledges and agrees that in the event Seller does not do so, Buyer or the closing agent may be required to withhold the applicable tax from the proceeds of sale at Closing and submit this amount to the Internal Revenue Service, pursuant to FIRPTA.

FINCEN RESIDENTIAL REAL ESTATE REPORTING RULE – NOTICE AND ACKNOWLEDGMENT: Buyer and Seller acknowledge that certain residential real estate transactions may be subject to federal reporting requirements administered by the Financial Crimes Enforcement Network ("FinCEN"). If the transaction involving the Property is determined to be a reportable transaction, either or both Buyer and Seller may be required to provide personal, ownership, and transactional information to the closing agent or other reporting person for purposes of complying with applicable law. Buyer and Seller acknowledge and agree that the failure or refusal of either party to timely provide required information may result in delays to closing or the closing agent's refusal to complete, close, or record the transaction. Buyer and Seller further acknowledge that no Brokerage Firm(s) or Brokers/Salespersons involved in the transaction anticipated by this Agreement Broker is responsible for determining whether the transaction is reportable of for preparing or submitting any FinCEN reports. Buyer and Seller each agree to cooperate in good faith with any lawful information requests related to FinCEN reporting requirements including, without limitation, providing all information required and acknowledge the failure to do so may constitute a breach of this Agreement entitling the other party to exercise all remedies under this Agreement.

Any fee charged by the individual or company closing the transaction for preparing and/or submitting any FinCEN reports will be paid by ☐ Seller ☑ Buyer ☐ Equally Shared.

CONSENT TO DISCLOSE INFORMATION: Buyer and Seller hereby consent to the procurement and disclosure by Buyer, Seller, and Brokers/Salespersons and their attorneys, agent, and other parties having interests essential to this Agreement, of any and all information reasonably necessary to consummate the transaction anticipated by this Agreement, specifically including access to escrows for review of contracts, deeds, trust indentures, or similar documents concerning this Property or underlying obligations pertaining thereto.

WIRE FRAUD ALERT: Criminals are hacking email accounts of title companies, real estate agents, settlement attorneys and others, resulting in fraudulent wire instructions being used to divert funds to the account of the criminal. The emails may look legitimate, but they are not. Buyer and Seller are advised NOT to wire any funds without personally speaking with the intended recipient of the wire to confirm the routing number and the account number. Buyer and Seller should NOT send personal information such as social security numbers, bank account numbers and credit card numbers through email.

ACCURACY OF THIRD-PARTY INFORMATION: Buyer is encouraged to do Buyer's own research and due diligence concerning the Property and to not rely solely on information contained in any advertisements, descriptions, photos, or information provided by a Multiple Listing Service. Buyer acknowledges and agrees that any information prepared by third parties with respect to the Property and provided to the Buyers was obtained from a variety of sources and that neither Seller nor any Brokers/Salesperson representing Seller or Buyer have made any independent investigation or verification of such information. Buyer further acknowledges that while such information provided to Buyer is believed to be from sources deemed reliable, some sources may have conflicting or incorrect information.

RISK OF LOSS: All loss or damage to any of the above-described Property or personal property from any cause is assumed by Seller through the time of closing unless otherwise specified.

TIME IS OF THE ESSENCE: Time is of the essence as to the terms and provisions of this Agreement.

BINDING EFFECT AND NON-ASSIGNABILITY: The Agreement is binding upon the heirs, successors and assigns of each of the parties hereto; however, Buyer's rights under this Agreement are not assignable without the Seller's express written consent.

ATTORNEY FEE: In any action brought by the Buyer or the Seller to enforce any of the terms of this Agreement, the prevailing party in such action shall be entitled to such reasonable attorney fees as the court or arbitrator shall determine just.

COMPENSATION: The Seller's and/or Buyer's commitment to pay compensation in connection with the transaction anticipated by this Agreement is an integral part of this Agreement. Seller and Buyer acknowledge that the agent(s) representing the Seller and/or Buyer are entitled to the compensation as previously agreed to in any written agreement(s) with the Seller and/or Buyer, and any addendums or amendments to this Agreement, and that the agent(s) representing the Seller and/or Buyer shall be entitled to deliver a copy of said agreement(s) to the individual or company closing the transaction for payment at closing. If Seller is obligated to pay the agent(s) representing the Seller and/or Buyer, this Agreement shall constitute an irrevocable assignment of the proceeds payable to Seller at closing. If Buyer is obligated to pay the agent(s) representing the Seller and/or Buyer, payment of said compensation shall be collected from Buyer as a condition of closing. Buyer and Seller acknowledge and agree that any compensation payable is fully negotiable and not set by Montana law, any board or association of REALTORS®, or any multiple listing service.

FAX/COUNTERPARTS/ELECTRONIC SIGNATURES: This Agreement may be executed in counterparts and, when all counterpart documents are executed, the counterparts shall constitute a single binding instrument. Moreover, a signature transmitted by fax or other electronic means will be enforceable against any party, who executes the Agreement and transmits the signature by fax or other electronic means. The parties hereto, all agree that the transaction contemplated by this document may be conducted by electronic means in accordance with the Montana Uniform Electronic Transaction Act.

ENTIRE AGREEMENT: This Agreement, together with any attached exhibits and any addenda or amendments signed by the parties, shall constitute the entire agreement between Seller and Buyer, and supersedes any other written or oral agreements between Seller and Buyer. This Agreement can be modified only in writing, signed by the Seller and Buyer.

EARNEST MONEY DISPUTES: Buyer and Seller agree that, in the event of any controversy regarding the earnest money and things of value held by the Broker, closing agent, or any person or entity holding such money or property, unless mutual written instructions are received by the holder of the earnest money and things of value, Broker or closing agent shall not be required to take any action, but may await any proceedings, or, at Broker's or closing agent's option and sole discretion, may interplead all parties and deposit any monies or things of value in a Court of competent jurisdiction and may utilize as much of the earnest money deposit as may be necessary to advance the cost and fees required for filing such action.

ADDENDA AND/OR DISCLOSURES ATTACHED: (check all that apply):

- ☐ Lead Based Paint Disclosure
- ☐ Addendum for Additional Provisions
- ☐ Multi-Family Disclosure
- ☑ Mold Disclosure
- ☐ Newly Constructed Residence Addendum and Disclosure
- ☐ Rent-Back Agreement (Post-Closing Seller Occupancy)
- ☐ Septic System Disclosure and Acknowledgment
- ☐ ______________________
- ☐ Contingency for Sale of Buyer's Property
- ☐ Back-up Offer
- ☐ Water Rights Acknowledgement
- ☐ Montana Unit Ownership Act Addendum
- ☐ Seller to Broker/Salesperson Compensation Addendum
- ☐ Solar Panel Addendum

RELATIONSHIP CONFIRMATION: The parties to this Agreement confirm that the real estate licensees identified hereafter have been involved in the capacities indicated below and the parties have previously received the required statutory disclosures setting forth the licensees' duties and the limits of their obligations to each party:

Julie Gardner of ERA Lambros Real Estate Missoula
(name of licensee) (name of brokerage company)

RRE-RBS-LIC-15881 of ______________________
(licensee's Montana license number) (brokerage company address)

406-532-9233 ______________________
(licensee phone number) (brokerage company phone number)

juliegardnerproperties@gmail.com
(licensee email address)

is acting as ☑ Seller's Agent ☐ Dual Agent ☐ Statutory Broke

Barbara Wimett-Creveling of Berkshire Hathaway Home Services of Montana
(name of licensee) (name of brokerage company)

RRE-RBS-LIC-12576 of 1020 South Ave W. Missoula, MT 59801
(licensee's Montana license number) (brokerage company address)

406-880-4264 ______________________
(licensee phone number) (brokerage company phone number)

barbara.creveling@bhhsmt.com
(licensee email address)

is acting as ☑ Buyer's Agent ☐ Dual Agent ☐ Statutory Broker
☐ Seller's Agent (includes Seller's Sub-Agent).

☐ Buyer is not represented by a real estate agent and acknowledges and agrees that Buyer is NOT represented by the licensee(s) identified above.

☐ Seller is not represented by a real estate agent and acknowledges and agrees that Seller is NOT represented by the licensee(s) identified above.

BUYER'S REPRESENTATIONS AND ACKNOWLEDGMENTS: By signing this Agreement Buyer represents and acknowledges the following:

Buyer has examined the subject real and personal property and represents that Buyer:
☑ has physically visited the Property in person prior to the execution of this Agreement; **OR**
☐ has not physically visited the Property in person prior to the execution of this Agreement;

That prior verbal representations by the Seller or Seller's representatives do not modify or affect this Agreement; and

That Buyer has entered into this Agreement in full reliance upon Buyer's her independent investigation and judgments and has read and understand this entire Agreement.

BUYER'S COMMITMENT: I/We agree to purchase the above-described Property on the terms and conditions set forth in the above offer and grant to said Broker/Salesperson until (date) 03/03/2026, at 7 ☐ am ☑ pm (Mountain Time) to secure Seller's written acceptance, whether or not that deadline falls on a Saturday, Sunday or holiday. Buyer may withdraw this offer at any time prior to Buyer being notified of Seller's written acceptance. If Seller has not accepted by the time specified, this offer is automatically withdrawn. I/we hereby acknowledge receipt of a copy of this Agreement bearing my/our signature(s).

Mark W Huston — dotloop verified 03/03/26 1:58 PM MST 1XO2-MCLT-CBQC-Q7N4 Date: ________, at ____ ☐ am ☐ pm (Mountain Time)
Buyer's Signature

Name Printed: Mark W Huston

Address: ______________________ State ____ Zip Code ________

Janelle M Huston — dotloop verified 03/03/26 1:59 PM MST MXFQ-SCTQ-SOD3-TAFX Date: ________, at ____ ☐ am ☐ pm (Mountain Time)
Buyer's Signature

Name Printed: Janelle M Huston

Address (*if different*): ______________________ State ____ Zip Code ________

SELLER'S COMMITMENT:

I/We agree to sell to Buyer the above-described Property on the terms and conditions herein above stated. I/We hereby acknowledge receipt of a copy of this Agreement bearing my/our signature(s) and that of the Buyer(s) named above.

Date: ____________, at ______ ☐ am ☐ pm (Mountain Time)

Seller's Signature

Name Printed: Charles T. Coston

Address: ____________________, ____________ State ____ Zip Code __________

Date: ____________, at ______ ☐ am ☐ pm (Mountain Time)

Seller's Signature

Name Printed: ______________________________

Address (*if different*): ____________________, ____________ State ____ Zip Code __________

☐ Modified per the attached Counter Offer:

______ / ______   ______ / ______

Seller's Initials   Date   Seller's Initials   Date

xx f this offer by Seller (No counter offer is being made):

TCPR 03/04/26 1:01 PM MST dotloop verified / ______   ______ / ______

Seller's Initials   Date   Seller's Initials   Date

NOTE: Unless otherwise expressly stated the term "days" means calendar days and not business days. Business days are defined as all days except Sundays and Montana or federal holidays.